> demanded for Delhi – 700 metric tonnes – resulted in states like Tamil Nadu and Karnataka also seeking judicial intervention for quotas. Clearly the messaging that went out was that the crying child gets the milk or rather oxygen![59]

This episode doesn't even scratch the surface of some of the ludicrous and unscientific statements that high courts have made through the pandemic. While hearing a case regarding COVID-19 management, the Allahabad High Court asked the UP government to 'consider producing COVID-19 vaccines themselves', in order to alleviate the state of affairs with regards to the pandemic. The Supreme Court had to intervene on 21 May 2021 by advising high courts across the country to avoid passing non-implementable orders regarding COVID-19 management.

So it is prudent to ask: was this excessive wading into the executive arm necessary? What was the norm regarding the role of the judiciary in other large democracies? In the US and the UK, very few cases were taken on regarding the government's COVID-19-management strategy and mostly the courts in those countries appeared supportive of the government's positions. Let us take for instance, the US Supreme Court's hearing regarding a plea challenging the COVID-19 vaccine mandate imposed by the employer of the petitioner. Justice Stephen G. Breyer, associate justice of the Supreme Court, didn't even consider the matter worthy to call for a response or refer the case to a full court. Only a week ago, he had rejected a challenge from the hospital workers of Massachusetts hospital system to block the US government's vaccine mandate.[60] On 30 October as well, the US Supreme Court had turned away healthcare workers who had been seeking a religious exemption to Maine's COVID-19 vaccine mandate.[61]

A similar pattern was observed in UK's top court. In a test case brought by the UK government's Financial Conduct Authority (FCA) regarding business interruption (BI) insurance policies providing insurance cover to policyholders in the COVID-19 context, the UK Supreme Court backed the FCA upholding that policyholders who were ordered to close business premises during the first national lockdown due to COVID-19 will be able to register valid claims with their insurers.[62]

A general opinion seems to be that since all three branches of the Indian government are envisioned to work together, is it responsible for one to overreach on matters exclusively allocated to the others by the Indian